

Court No. - 32

Case :- WRIT - C No. - 41751 of 2019

Petitioner :- Pushpendra Singh

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Abhay Raj Yadav

**Counsel for Respondent :- C.S.C., Krishna
Agarawal**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Shamim Ahmed,J.

This writ petition has been filed, *inter alia*, for the following reliefs:

(a) issue a writ, order or direction in the nature of certiorari quashing the impugned order dated 22-10-2019 passed by the respondent no. 3 and the impugned recovery citation dated 06-12-2109 issued by the respondent no. 5 requiring the petitioner to pay an amount amounting Rs. 8,36,398/- as well as the entire recovery proceedings, initiated in pursuance of the impugned order dated 22-10-2019 passed by the respondent no. 3 and the impugned recovery citation dated 06-12-2019 issued by the respondent no. 5."

Learned counsel for the petitioner has submitted that till date even a copy of the provisional assessment has not been supplied to the petitioner by the concerned authority and coercive action is being taken against the petitioner without giving any opportunity of hearing and following the provisions contained under the U.P. Electricity Supply Code 2005.

Learned counsel for the electricity department undertakes to supply a copy of the provisional assessment to the petitioner within one week from today.

Heard learned counsel for the petitioner, Mr. Krishna Agarwal, learned counsel for the electricity department and perused the record.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 6.1.2020 at 11.00 A.M. before the Respondent No.3, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No.3, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of seven weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed and files his objection, the impugned demand notice shall stand revived automatically.

With the above observations, the writ petition stands disposed of.

Order Date :- 17.12.2019

MLK